

ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

C.R. No. 25657 of 2019

Ghulam Hussain

Vs.

Manzoor Hussain

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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31.05.2022	Mr. Iftikhar A. Chohan, Advocate for the petitioner. Mr. Naveed Khalid, Advocate for respondent No.1.
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Through this Civil Revision, petitioner has called in question order dated 06.11.2018 passed by Civil Judge Class-I, Daska whereby while deciding application for interim relief in the suit for specific performance filed by the petitioner trial court has imposed the condition of depositing of remaining sale consideration amount of Rs. 1,27,50,000/- in the Court upon the petitioner and has also called in question judgment dated 26.02.2019 passed by Addl. District Judge, Daska whereby appeal filed by the petitioner against the said order has been dismissed.

2. It is contended by learned counsel for the petitioner that without determining whether the remaining consideration amount is due against the petitioner direction cannot be issued against the petitioner to deposit the remaining amount. Besides, said amount according to the petitioner has been ordered to be deposited while deciding the application for interim relief and vide same order issues were framed wherein the matter relating to the agreement to sell and amount to be paid therein is yet to be proved by leading evidence, therefore, according to learned counsel

for the petitioner there was no occasion to direct the petitioner to deposit the afore-referred amount.

3. On the other hand, learned counsel for the respondent has defended the impugned order by stating that Court directed the petitioner to deposit remaining amount in the Court as per his averments in plaint while deciding his application in accordance with law settled by Hon'ble Supreme Court of Pakistan as well as by this Court in various judgments and prays to uphold the impugned order.

4. The facts in brief are that the petitioner Ghulam Hussain on 07.03.2018 filed a suit for specific performance of agreement to sell dated 25.05.2017, against the respondent Manzoor Hussain by claiming that respondent had agreed to sell suit property measuring 20K-08M to him for sale consideration of Rs. 1,62,50,000/- and has received Rs. 35,00,000/- as earnest money and prayed that suit for specific performance be decreed and the defendant be directed to receive remaining sale consideration of Rs. 1,27,50,000/- and transfer suit property to the petitioner, whereas respondent also filed a suit for declaration and permanent injunction on 16.12.2017 by claiming that on failure of the petitioner to make payment of 1,27,50,000/- till 01.11.2017, which was agreed date for payment, the agreement stands cancelled. Both the suits were consolidated in which the respondent was treated as plaintiff and petitioner as defendant. Both the parties filed applications for interim relief in their respective suits, which applications have been decided through the impugned order passed by trial court dated

06.11.2018, the operative part of which is reproduced below:

“In view of the above discussed facts and circumstances, the application filed by defendant Ghulam Hussain for grant of temporary injunction in connected suit titled “Ghulam Hussain Vs. Manzoor Hussain” is accepted and plaintiff of this suit Manzoor Hussain is restrained to alienate the suit property during pendency of this suit. Admittedly, possession is with the plaintiff Manzoor Hussain hence, defendant Ghulam Hussain will not interfere in the possession of the plaintiff. Defendant Ghulam Hussain is directed to deposit the remaining consideration amount of Rs. 1,27,50,000/- in the Court.”

5. The perusal of the said order shows that while deciding the applications for interim relief in the afore-referred consolidated suits, wherein respondent was restrained from alienating the suit property and the petitioner was directed not to interfere in his possession, the Court directed the petitioner Ghulam Hussain to deposit the remaining unpaid consideration amount of Rs.1,27,50,000/- in the Court, however, neither the order of interim relief was made subject to deposit of afore-referred amount nor any consequences of its non-deposit were provided in the said order as it was not mentioned that in case of non-deposit of the said amount either the stay order shall be recalled or the suit shall be dismissed, thus, the order of deposit was independent of the portion of order relating to interim relief and at this stage does not apparently have any adverse effect on the main case as well for the reason that through the same order issues relating to merit of case were framed and the parties were directed to lead evidence on said issues, where-after the matter is to be decided after recording of evidence, therefore, *prima facie* no prejudice has been

caused to petitioner by said order and the same cannot be treated as adversely affecting the rights of the petitioner, hence, the order by trial court for deposit and judgment passed by the Appellate Court whereby said order was upheld, both being based on proper appreciation of facts of the case available on the record as to the amount of remaining payment and well within discretionary jurisdiction of said courts are even otherwise in consonance with principles laid down in judgments reported as “*Irfan Rasheed Vs. Muhammad Muazim and others*” (**PLD 2022 Lahore 372**), “*Messrs Kuwait Nation Real Estate Company (Pvt.) Ltd. and others Vs. Messrs Educational Excellence Ltd. and another*” (**2020 SCMR 171**), “*Mst. Samina Riffat and others Vs. Rohail Asghar and others*” (**2021 SCMR 7**), “*Inayatullah Khan and others Vs. Shabbir Ahmad Khan*” (**2021 SCMR 686**), “*Muhammad Shafiqullah and others Vs. Allah Bakhsh (Deceased) through L.Rs. and others*” (**2021 SCMR 763**), “*Muhammad Jamil and others Vs. Muhammad Arif*” (**2021 SCMR 1108**), “*Muhammad Yousaf Vs. Allah Ditta and others*” (**2021 SCMR 1241**) and “*Muhammad Asif Awan Vs. Dawood Khan and others*” (**2021 SCMR 1270**). In view of the foregoing as the discretionary order for deposit of remaining sale consideration without providing for any consequence for non-deposit of same does not adversely affect or prejudice the case of the petitioner, consequently, the well-founded order and judgment passed by the courts below cannot be said to be suffering from any illegality,

jurisdictional defect, misreading and non-reading of record for this Court to interfere in the same.

6. For what has been discussed above, this petition, being devoid of merits, is **dismissed**.

(Muzamil Akhtar Shabir)
Judge

*Muzamil Mohsin**

Approved for reporting.